

IP-SAKTI SAHAYAK

INDIA — PATENT & TRADEMARK LAWS, ACTS, RULES & REGULATORY REFERENCE

Detailed implementation reference based on official IP India sources checked 9 September 2026. Use the current consolidated Act/Rules for present-day decisions; retain amendments for legal version history. This is a structured summary, not a reproduction of the statutes.

1. CORE INDIAN INSTRUMENTS

Instrument	Role	Prototype use
Patents Act, 1970	Principal Indian patent statute; IP India provides a consolidated version incorporating amendments till 01-08-2024.	Patentability, filing, examination, opposition, grant, rights, licensing, revocation, working, agents and appeals.
Patents Rules, 2003	Principal patent procedure/fee rules; IP India lists consolidated Rules incorporating amendments till 15-03-2024.	Forms, timelines, filing procedure, examination, fees, renewal, PCT and procedural compliance.
Patents (Amendment) Rules, 2024	March 2024 amendments; current Rules incorporate these amendments.	Current procedural rules; especially important for prosecution and foreign-application information.
Trade Marks Act, 1999	Principal Indian trademark statute.	Registration, refusal, opposition, rights, infringement, rectification, assignment, renewal and Madrid.
Trade Marks Rules, 2017	Principal trademark procedure/fee rules.	TM forms, classification, examination, opposition, renewal, assignment and Madrid procedure.
Trade Marks (Amendment) Act, 2010	Official amendment Act listed by IP India.	Historical/version provenance for the Act.
Trade Marks (Amendment) Rules, 2013	Official amendment rules listed by IP India.	Historical/version provenance; do not treat as a standalone current rule set.
Trade Marks Rules, 2002	Repealed by 2017 Rules but retained in official archive.	Historical cases only.

Official patent Acts archive: <https://ipindia.gov.in/resource/patents-resources-act> ; patent Rules archive: <https://ipindia.gov.in/resource/patents-resources-rules> ; trademark Acts archive: <https://www.ipindia.gov.in/trade-marks-resources-act> ; trademark Rules archive: <https://www.ipindia.gov.in/trade-marks-resources-rules>

2. PATENTS ACT, 1970 — CHAPTER/SECTION DATASET

Chapter / area	Sections	Detailed subject	IP-SAKTI relevance
Preliminary	1-2	Short title, extent, commencement and definitions.	Legal glossary/jurisdiction.
Inventions not patentable	3-5	Section 3 lists statutory exclusions; Section 4 concerns atomic energy; Section 5 is omitted.	Highest-value patentability screening layer.
Applications	6-11	Who may apply, application form, foreign applications, provisional/complete specifications, specification contents and priority.	Filing workflow and checklist.
Publication & examination	11A-11B	Publication and request for examination framework.	Deadline/status engine.
Opposition	25-28	Pre-grant/post-grant opposition and related provisions.	Prior-art/validity risk.
Anticipation	29-34	Situations addressing anticipation by prior publication, prior communication/use and related matters.	Novelty/prior-art engine.
Secrecy	35-42	Secrecy directions for specified inventions and related procedure.	Low relevance to Ayurveda, but part of complete framework.
Grant & term	43-53	Grant, conditions, rights/limitations and patent term.	Lifecycle calculation.
Patents of addition	54-56	Patents of addition and term.	Optional lifecycle route.
Amendment	57-59	Amendment of applications/specifications and limits.	Prosecution workflow.
Restoration	60-62	Restoration of lapsed patents.	Lifecycle recovery.
Surrender/revocation	63-66	Surrender and revocation.	Post-grant status.
Register	67-72	Register and inspection/certification.	Patent record/status.
Patent Office	73-76	Controller and Patent Office provisions.	Authority mapping.
Controller powers	77-81	Controller powers and procedure.	Proceeding engine.
Working/licensing	82-94	Working and compulsory licensing provisions.	Commercialisation/compliance.
Appeals	117A etc.	Appeal provisions after tribunal reforms, with current statutory wording controlling.	Dispute workflow.
Penalties	118-124	Penalties/offences and related provisions.	Compliance/risk.
Miscellaneous	125-159	Patent agents, international applications, reciprocity, scientific advisors, costs and rule-making.	International + administration.

3. AYURVEDA-HIGH-VALUE PATENT PROVISIONS

Provision	Rule area	Ayurvedic application
Section 3(c)	Mere discovery / naturally occurring subject matter	A natural plant, substance or naturally occurring property is not automatically a patentable invention; the claimed invention must be assessed under the statutory exclusions.
Section 3(d)	New form/new property of known substance	Relevant to new forms of known medicinal substances; the statutory requirements must be checked rather than assuming novelty from a new formulation name.
Section 3(e)	Mere admixture	Relevant to mixtures/formulations where the result is only an aggregation of properties.
Section 3(i)	Treatment methods	Methods of medicinal, surgical, curative, prophylactic or other treatment of humans/animals are excluded.
Section 3(j)	Plants/animals/biological processes	Important when claims concern biological material, plants or biological processes; apply exact statutory exceptions.
Section 3(p)	Traditional knowledge	Inventions that are in effect traditional knowledge, or aggregation/duplication of known traditionally known properties, are excluded.
Section 8	Foreign applications	Foreign corresponding applications and prescribed information/undertakings must be handled according to the Act and Rules.
Section 10	Specification contents	Claims and specification must satisfy statutory disclosure requirements.
Section 25	Opposition	Patent may face opposition on statutory grounds; useful for risk scoring.
Section 39	Foreign filing	Filing outside India can be restricted for inventions made in India unless the statutory route/permission requirements are satisfied.
Section 53	Term	Use for patent expiry/lifecycle calculations.
Section 84	Compulsory licensing	Commercialisation/licensing risk after grant.
Section 146	Working information	Working-related information can be required under the Act/Rules; useful for post-grant compliance.

For Ayurveda, Section 3(p) should be connected to a prior-art/TK evidence layer such as TKDL rather than used as an automatic AI rejection. The exact statutory text remains the authority.

4. PATENTS RULES, 2003 — PROCEDURAL DATA

Rule cluster	What to capture	Implementation use
Rules on forms/fees	Form number, prescribed fee, applicant category, e-filing/physical filing.	Cost optimiser + filing checklist.
Application/specification procedure	Provisional/complete specification, drawings, abstract, claims and supporting documents.	Document validation.
Foreign applications / Rule 12	Information and undertaking regarding foreign applications; 2024 amendment changed timing/process around prescribed information.	Foreign-filing compliance flag.
Publication	Ordinary and early publication procedure.	Timeline/cost calculation.
Examination / Rule 24B etc.	Request for examination and examination referral; current Rules include transitional treatment for older applications.	Deadline/status engine.
Expedited examination	Eligibility and prescribed procedure/fee.	Fast-track recommendation.
Opposition	Pre/post-grant opposition procedure and forms.	Dispute workflow.
Amendments	Procedure and limits for amendment requests.	Prosecution workflow.
Renewal	Annual renewal/fee payment procedure and consequences.	Lifetime cost calculator.
Restoration	Restoration of lapsed patent.	Recovery workflow.
Patent agents	Registration/representation provisions.	Agent selection/workflow.
PCT	International application procedure through Indian Receiving Office and related fees.	International cost estimator.

Current official Rules archive: IP India lists the consolidated Patents Rules, 2003 incorporating amendments till 15-03-2024, plus the March 2024 amendment notifications.

[\[cite\]](#)[\[turn1search0\]](#)[\[turn1search24\]](#)

5. PATENT AMENDMENT ACTS / RULES — VERSION HISTORY

Instrument	Keep in KB as	Purpose
Patents (Amendment) Act, 1999	Historical amendment	Amendment provenance.
Patents (Amendment) Act, 2002	Historical amendment	Amendment provenance.
Patents (Amendment) Act, 2005	Historical amendment	Amendment provenance.
Patents (Amendment) Rules, 2005	Historical rule version	Older procedure.
Patents (Amendment) Rules, 2006	Historical rule version	Older procedure.
Patent (Amendment) Rules, 2012	Historical rule version	Older procedure.
Patent (Amendment) Rules, 2013	Historical rule version	Older procedure.
Patents (Amendment) Rules, 2014	Historical rule version	Older procedure.
Patents (Amendment) Rules, 2016	Historical rule version	Older procedure.
Patents Amendment Rules, 2019	Historical rule version	Older procedure.
Patents (Amendment) Rules, 2020	Historical rule version	Older procedure.
Patents (2nd Amendment) Rules, 2020	Historical rule version	Older procedure.
Patents (Amendment) Rules, 2021	Historical rule version	Older/current-context provenance.
Patents (Amendment) Rules, 2024	Current amendment provenance	Must be linked to the consolidated Rules.
Jan Vishwas (Amendment of Provisions) Act, 2023	Related amendment legislation	Relevant to amended penalty/offence provisions.
Tribunals Reforms Act, 2021	Related legislation	Relevant to transfer of specified appellate functions to High Courts.

IP India currently lists these patent Acts and amendments in its official Acts archive. [\[cite\]turn2search7](#)

6. TRADE MARKS ACT, 1999 — CHAPTER/SECTION DATASET

Chapter / area	Sections	Detailed subject	IP-SAKTI relevance
Preliminary	1-2	Extent, commencement and definitions.	Glossary.
Register / registration conditions	3-17	Registry, registrability, absolute/relative grounds, limitations, classification and related registration provisions.	Trademark eligibility + search.
Procedure / duration	18-26	Application, opposition, registration, duration and renewal.	Application lifecycle + cost.
Effect of registration	27-36	Rights, infringement and statutory limitations.	Risk and rights engine.
Madrid international registration	36A-36G	International registration framework under Indian law.	International trademark route.
Assignment / transmission	37-45	Transfer of trademark title and recording.	Ownership workflow.
Use / registered users	46-56	Registered-user and use-related provisions.	Use/compliance.
Rectification	57-59	Rectification/correction of register.	Dispute/status.
Collective marks	61-68	Collective trademark regime.	Special mark type.
Certification marks	69-78	Certification trademark regime.	Special mark type.
Textile goods	79-81	Special textile provisions.	Low relevance to Ayurveda.
Offences / penalties	102-121	False representation, infringement-related offences and procedure.	Enforcement risk.
Miscellaneous	122-159	International conventions, agents, evidence, rule-making and related matters.	Administration/international.

7. HIGH-VALUE TRADEMARK PROVISIONS FOR AN AYURVEDIC BRAND

Provision	Rule area	Prototype application
Section 9	Absolute grounds	Check distinctiveness, descriptive/generic characteristics and other statutory grounds before suggesting registration.
Section 11	Relative grounds	Search earlier marks and assess conflict/deceptive similarity.
Section 12	Honest concurrent use / special circumstances	Potential exception route; do not automatically recommend.
Section 18	Application	TM-A filing workflow.
Section 21	Opposition	Opposition workflow and risk.
Section 25	Duration / renewal	Renewal deadline and cost.
Section 27	Unregistered marks	No statutory infringement action for an unregistered mark; passing-off remains relevant.
Section 28	Registered proprietor rights	Rights arising from registration, subject to Act/conditions.
Section 29	Infringement	Core infringement risk check.
Sections 30–34	Limitations / defences	Important when evaluating alleged infringement.
Sections 36A–36G	Madrid	International registration.
Section 47	Non-use	Removal risk where statutory non-use conditions are met.
Section 57	Rectification	Register challenge/correction.
Sections 61–78	Collective/certification marks	Special routes if relevant to an Ayurvedic organisation/product certification.

8. TRADE MARKS RULES, 2017 — PROCEDURAL DATA

Rule	Subject	Implementation use
1-10	Preliminary matters, definitions, jurisdiction, notices and fees.	Basic configuration.
20	Classification of goods/services using current WIPO Nice Classification.	Class recommendation.
23	TM-A application; representation, classes and application requirements.	Application form/checklist.
24	Convention priority.	Foreign-priority workflow.
25	Statement of user / affidavit where prior use is claimed.	Evidence checklist.
37-38	Correction/amendment and withdrawal of acceptance.	Prosecution workflow.
42-51	Opposition procedure.	Opposition workflow.
57-61	Renewal/restoration procedure.	Renewal cost/deadline.
62-74	Madrid Protocol chapter; international applications and India designations.	International trademark workflow.
67	Handling fee for certification/transmission of international application.	Cost optimiser input.
75 onward	Assignment/transmission and related entries.	Ownership changes.
106	Conflict with geographical indications.	GI warning/cross-check.
112	Amendments and correction of procedural irregularities.	Document/procedure correction.
140 onward	Agents and miscellaneous provisions.	Agent/procedural records.

Official Rules text confirms the 2017 Rules, Nice Classification usage, TM-A procedure, renewal, Madrid provisions and handling fee. [\[cite\]turn2search1](#)

9. AYURVEDA-RELEVANT SUPPORTING INSTRUMENTS

Instrument / source	Why beneficial	Keep separate from patent/trademark law?
Traditional Knowledge Digital Library (TKDL)	Prior-art/traditional-knowledge evidence relevant to Ayurveda and Section 3(p) screening.	Yes — evidence/database layer.
Geographical Indications of Goods (Registration and Protection) Act, 1999	Useful when an Ayurvedic product/name is geographically linked or protected as a GI.	Yes — separate GI law.
Geographical Indications Rules, 2002	Procedure for GI registration/protection.	Yes — separate GI procedure.
Biological Diversity Act, 2002 and current implementing framework	Potentially relevant when Indian biological resources and associated knowledge are accessed/used.	Yes — biodiversity/compliance layer, not a patentability substitute.
WIPO Nice Classification	Trademark goods/services classification referenced by Trade Marks Rules.	Yes — classification layer.

10. OFFICIAL SOURCE REGISTRY

Official source	Link	What it contains
IP India — Patent Acts	https://ipindia.gov.in/resource/patents-resources-act	Patents Act and amendment Acts.
IP India — Patent Rules	https://ipindia.gov.in/resource/patents-resources-rules	Patents Rules, 2003 and amendment Rules.
IP India — Patent Act text	https://ipindia.gov.in/acts/patent-act-1970	Section-by-section current Act text.
IP India — Trade Mark Acts	https://www.ipindia.gov.in/trade-marks-resources-act	Trade Marks Act, 1999 and amendment Acts.
IP India — Trade Mark Rules	https://www.ipindia.gov.in/trade-marks-resources-rules	Trade Marks Rules and amendments.
IP India — Trade Mark Rules text	https://ipindia.gov.in/tm-rules-2017	Rule-by-rule text, including Madrid procedure.
IP India — IPR Acts & Rules hub	https://ipindia.gov.in/resource-links/acts-rules-ipr-links	Central official hub for Indian IPR Acts, Rules, Manuals and Guidelines.
IP India — Patent Manuals	https://ipindia.gov.in/resource/patents-resources-manuals	Patent Office practice/procedure materials.
IP India — Trade Mark Manuals	https://ipindia.gov.in/trade-marks-resources-manual	Trade Mark practice/procedure materials.

Versioning rule: store instrument, section/rule, source URL, publication/effective date, status (current/historical/draft), and last_verified. IP India's 2026 site currently lists a draft Patent Office manual and draft trademark manual; those must be marked DRAFT and must not be used as operative law. [\[cite turn1search4 turn1search11\]](#)